



SPONSOR: Sen. Hoffner & Rep. Romer
Sens. Huxtable, Pettyjohn, Poore, Richardson; Reps.
Collins, Jones Giltner, Ortega, Ross Levin

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 54

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO THE JOINT LEGISLATIVE AND
OVERSIGHT COMMITTEE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 10203, Title 29 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 10203. Committee composition; chair and vice chair; appointment; quorum; reimbursement; hearings.

4 (c) Quorum. — (1) A quorum consists of at least 6 committee members. A quorum must be present in order to
5 transact business, except that a quorum is not required if the only business the Committee is transacting is to hear an entity
6 under review give a presentation.

7 (2) A proposition is carried by a majority of the entire Committee, unless a statute or rule requires a larger
8 number of affirmative votes. A vacancy on the Committee is not counted to determine the number of members needed
9 to achieve a majority.

10 (3) ~~A member who participates in a meeting virtually rather than being physically present at the meeting is not~~
11 ~~counted toward quorum in determining whether the Committee may transact business. However, a member~~
12 ~~participating in a meeting virtually may vote as if the member were physically present at the meeting. This paragraph~~
13 ~~does not apply if the President Pro Tempore of the Senate and the Speaker of the House of Representatives issue a~~
14 ~~public notice that members of the Senate or House of Representatives or a legislative committee are authorized to~~
15 ~~convene and conduct a virtual meeting due to an emergency. [Repealed.]~~

SYNOPSIS

This Act is from the Joint Legislative Oversight and Sunset Committee, to remove the provision that a committee member who participates virtually in a committee meeting is not counted toward quorum.

Author: Senator Hoffner